

DATA PROCESSING AGREEMENT (DPA) — SYNTHETIC EVAL FIXTURE (EN)

This Data Processing Agreement (this “Agreement”) is entered into as of the Effective Date by and between the Customer and the Processor.

1. Designation of the Parties. The parties acknowledge that, for the purposes of this Agreement, the Customer is the Controller and the Processor is the Processor of Personal Data, each as defined in the GDPR. The Processor shall process Personal Data solely for the purpose of providing the services described in the Principal Agreement.

2. Sub-processor Obligations. Where the Processor engages another processor for carrying out specific processing activities on behalf of the Controller, the same data protection obligations as set out in this Agreement shall be imposed on that other processor by way of a contract, in particular providing sufficient guarantees to implement appropriate technical and organisational measures. The Processor shall remain fully liable to the Controller for the performance of that other processor's obligations.

3. Sub-processor Engagement. The Processor may engage other processors from time to time. The Processor shall inform the Controller of any sub-processors it engages, with such notice to be provided no later than thirty (30) days after the engagement. The Controller may terminate this Agreement if it objects to a sub-processor engagement on reasonable grounds related to data protection.

4. International Transfers. The Processor shall not transfer Personal Data to a third country or an international organisation unless an adequate level of protection is ensured by way of an adequacy decision of the European Commission, the Standard Contractual Clauses (Module Two) set out in Commission Implementing Decision (EU) 2021/914, or any other lawful transfer mechanism recognised under Chapter V GDPR.

5. Personal Data Breach Notification. The Processor shall notify the Controller of a Personal Data Breach within seventy-two (72) hours of becoming aware of the Personal Data Breach. The notification shall describe the nature of the Personal Data Breach, the categories and approximate number of data subjects concerned, and the likely consequences.

6. Return or Deletion of Personal Data. Upon termination of the services relating to processing, the Processor shall, at the choice of the Controller, return or delete all Personal Data and provide written certification of such return or deletion upon the Controller's request.